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The Art of Trademarking: Protecting Your Mark

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More connected.

The Art of Trademarking

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- Selecting Potential Marks
- Searching and Clearing Marks
- Registering Marks
- Using Marks Correctly

Why Trademark?

- Potentially Huge Monetary Value
  - $4.2 BILLION, $4.7 BILLION



- Avoid Negatives
  - Rebranding
  - Damages
  - Company Death

Why Trademark?

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- Create Value
  - Higher Margins
  - Higher Volumes
  - Financing
  - Buyout

What Is a Trademark?

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- A trademark is a symbol used in commerce to identify the source of goods or services
  - Words
  - Designs
  - Names
  - Product features
  - Slogans
  - Sounds
  - Colors
  - Scents

What Makes a Good Trademark?

- A good trademark is a distinctive trademark
- The more distinctive the mark, the less likely it will infringe other marks or be infringed itself

Levels of Distinctiveness

- Fanciful or coined = Kodak, Xerox
- Arbitrary = Apple (for computers)
- Suggestive = Coppertone
- Descriptive = TV Guide, Windows
- Generic = Aspirin, Apple (for fruit)

Trademark Searching

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- Preliminary Search
  - Do it yourself
  - More than one
- Comprehensive Search
  - Advice Recommended
  - $500 to $1,000 for U.S.
  - $2,000+ for International
- Registration
  - Do NOT do it yourself

Preliminary Search

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Summary Search Results

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Trademark Database Search Results: MS/Palm AND IC/009 in REG - Netscape

File Edit View Go Communicator Help

Bookmarks Netsite: http://trademarks.uspto.gov/cgi-bin/bool_srch4?TRADEMARK+3

Help | Home | Marks | Boolean | Manual | Number | Order Copy | PTDLs

[Help]

Searching REG...

[Search Summary]

Results of Search in REG db for:
(MS/Palm AND IC/009): 24 trademarks.
*Hits **1** through **24** of **24***

Refine Search MS/Palm AND IC/009

No.	Trademark
1.	2134487 -- PALMCAM
2.	2105257 -- A TOTAL COMMUNICATION SYSTEM IN THE ***PALM*** OF YOUR HAND
3.	2072710 -- THE WORLD IN THE ***PALM*** OF YOUR HAND
4.	2041845 -- ***PALM*** BEACH ACCESS
5.	1965938 -- PALMCONNECT
6.	1954207 -- ***PALM*** BEACH ENTERTAINMENT
7.	1917715 -- ***PALM*** BEACH ENTERTAINMENT
8.	1915813 -- ***PALM*** COMPUTING
9.	1905456 -- PALMTERM

http://www1.uspto.gov/tmdb/help.html

Detailed Results

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http://trademarks.uspto.gov/cgi-bin/ifetch4?ENG+ALL+3+964318+4+0+352159+F+1+4+1+MS/"palm+comput - Microsoft Internet Explorer

File Edit View Go Favorites Help

Address http://trademarks.uspto.gov/cgi-bin/ifetch4?ENG+ALL+3+964318+4+0+352159+F+1+4+1+MS%2f%22palm+computing%22 Links

US PATENT & TRADEMARK OFFICE
TRADEMARK TEXT AND IMAGE DATABASE

Help | Home | Marks | Boolean | Manual | Number | Order Copy | PTDLs

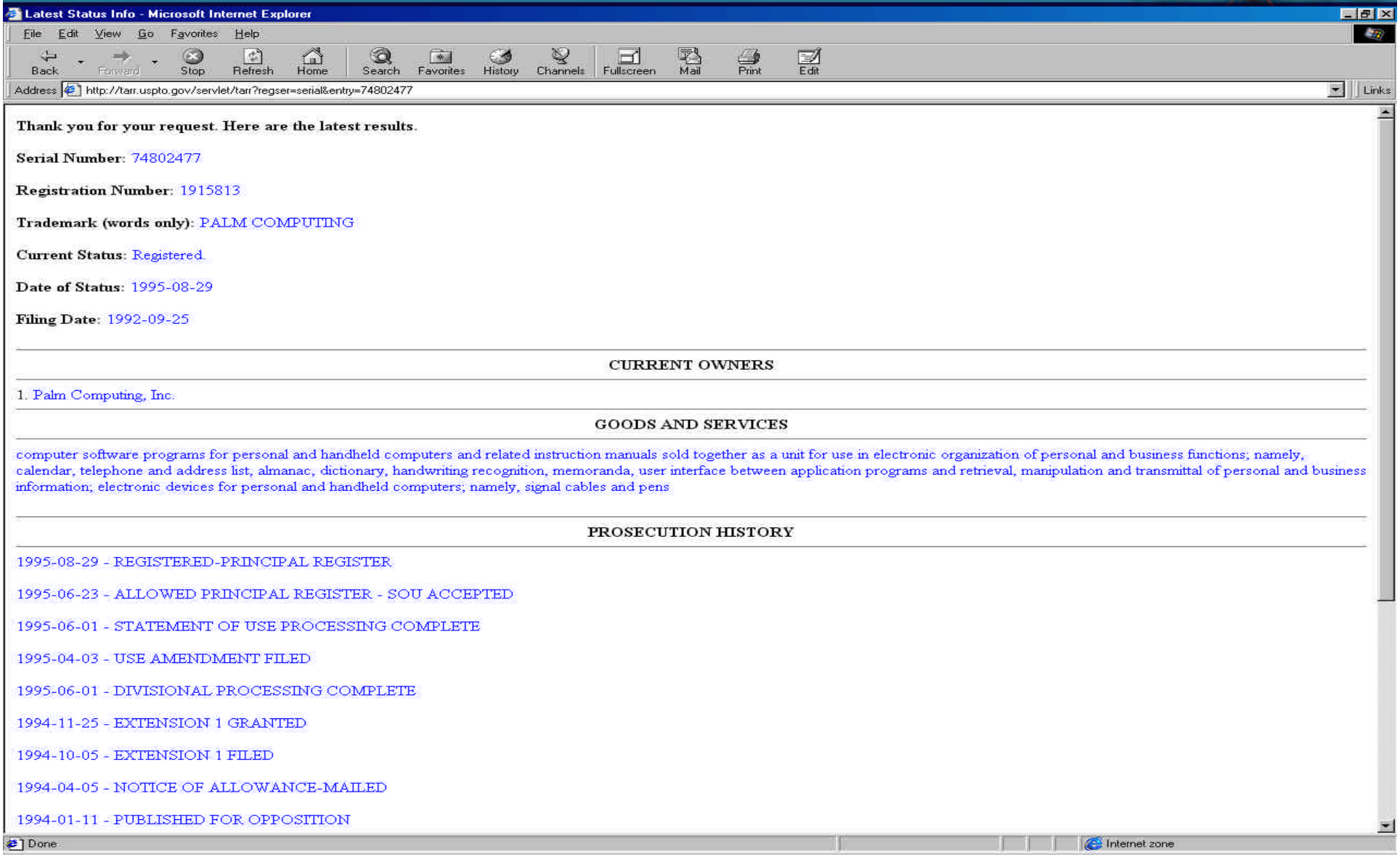
(1 of 4)

Check Status

Word Mark	***PALM COMPUTING***
Owner Name	(REGISTRANT) ***Palm Computing***, Inc.
Owner Address	4410 El Camino Real Suite 108 Los Altos CALIFORNIA 94022 CORPORATION CALIFORNIA
Attorney of Record	James P. Dugan
Serial Number	74-802477
Registration Number	1915813
Filing Date	09/25/1992
Registration Date	08/29/1995
Section 1(B) indicator	SECTION 1 (B)
Mark Drawing Code	(1) TYPED DRAWING
Disclaimer	NO CLAIM IS MADE TO THE EXCLUSIVE RIGHT TO USE "COMPUTING" APART FROM THE MARK AS SHOWN
Register	PRINCIPAL
Published for Opposition	01/11/1994
Type of Mark	TRADEMARK
International Class	009
Goods and Services	computer software programs for personal and handheld computers and related instruction manuals sold together as a unit for use in electronic organization of personal and business functions; namely, calendar, telephone and address list, almanac, dictionary, handwriting recognition, memoranda, user interface between application programs and retrieval, manipulation and transmittal of personal and business information; electronic devices for personal and handheld computers; namely, signal cables and pens; DATE OF FIRST USE: 1992.02.00; DATE OF FIRST USE IN COMMERCE: 1992.02.00

Current Status

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Thank you for your request. Here are the latest results.

Serial Number: 74802477

Registration Number: 1915813

Trademark (words only): PALM COMPUTING

Current Status: Registered.

Date of Status: 1995-08-29

Filing Date: 1992-09-25

CURRENT OWNERS

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1. Palm Computing, Inc.

GOODS AND SERVICES

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computer software programs for personal and handheld computers and related instruction manuals sold together as a unit for use in electronic organization of personal and business functions; namely, calendar, telephone and address list, almanac, dictionary, handwriting recognition, memoranda, user interface between application programs and retrieval, manipulation and transmittal of personal and business information; electronic devices for personal and handheld computers; namely, signal cables and pens

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PROSECUTION HISTORY

1995-08-29 - REGISTERED-PRINCIPAL REGISTER

1995-06-23 - ALLOWED PRINCIPAL REGISTER - SOU ACCEPTED

1995-06-01 - STATEMENT OF USE PROCESSING COMPLETE

1995-04-03 - USE AMENDMENT FILED

1995-06-01 - DIVISIONAL PROCESSING COMPLETE

1994-11-25 - EXTENSION 1 GRANTED

1994-10-05 - EXTENSION 1 FILED

1994-04-05 - NOTICE OF ALLOWANCE-MAILED

1994-01-11 - PUBLISHED FOR OPPOSITION

Federal Registration

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- Deterrent
  - Constructive and actual notice
  - ® Symbol
- Access to federal courts
- Incontestability after five years
- $750 to $2,000 for U.S.
  - ($750 to $5,000 for foreign)
- 14- to 30-month application process

Trademark Usage

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- Use marks as proper adjectives followed by nouns
- Do not use marks as verbs, plurals, or possessives
- Use proper trademark notices

Trademark Grammar

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Pronoun	Verb Phrase	Article	Adjective	Noun
You	should drive	a	German	car
You	should buy	a	Palm III	organizer
You	should use	the	HotSync	function

Trademark Usage

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- Use marks as proper adjectives followed by nouns
- Do not use marks as verbs, plurals, or possessives
- Use proper trademark notices
  - TM or ®
  - First and most prominent uses

Proprietary Category

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When referencing the collective grouping of organizers manufactured by Palm Computing, U.S. Robotics or 3Com, the preferred formal pairing of trademark and descriptive noun is:

Palm Computing® connected organizers



The preferred informal pairing is:

Palm™ organizers

You may also use:

Palm™ handhelds or Palm™ devices

Partner Category

Showing Compatibility

Generic Category

Never use Palm Computing trademarks generically. Do NOT use “Palm computers” to describe handheld devices (such as Microsoft Windows CE products) that are not compatible with the Palm Computing® platform. Refer to such products by their own trademarks or with a generic product category such as “handhelds” or “handheld computers”.

For More Information

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- For complete guidelines on correct usage of Palm Computing trademarks, logos and images, consult the Marketing Communications Guidelines in the Developer Assistance section of Palm.Com at: http://www.palm.com/devzone/marketing.html

- For detailed information on selecting, searching, registering, enforcing and licensing trademarks, e-mail jdf@steinhart.com requesting Trademark Basics.

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